

instructive, although we of course express no view on the jury trial issue in that context. In Title VII cases the courts of appeals have characterized backpay as an integral part of an equitable remedy, a form of restitution. But the statutory language on which this characterization is based—

“[T]he court may enjoin the respondent from engaging in such unlawful employment practice, and order such affirmative action as may be appropriate, which may include, but is not limited to, reinstatement or hiring of employees, with or without back pay . . . , or any other equitable relief as the court deems appropriate,” 42 U. S. C. § 2000e-5 (g) (1970 ed., Supp. II)—

contrasts sharply with § 812's simple authorization of an action for actual and punitive damages. In Title VII cases, also, the courts have relied on the fact that the decision whether to award backpay is committed to the discretion of the trial judge. There is no comparable discretion here: if a plaintiff proves unlawful discrimination and actual damages, he is entitled to judgment for that amount. Nor is there any sense in which the award here can be viewed as requiring the defendant to disgorge funds wrongfully withheld from the plaintiff. Whatever may be the merit of the “equitable” characterization in Title VII cases, there is surely no basis for characterizing the award of compensatory and punitive damages here as equitable relief.¹⁴

v. *County Board of Education*, 455 F. 2d 199, 202-204 (CA6 1972); *Harkless v. Sweeny Independent School District*, 427 F. 2d 319, 324 (CA5 1970), cert. denied, 400 U. S. 991 (1971); *Smith v. Hampton Training School*, 360 F. 2d 577, 581 n. 8 (CA4 1966) (en banc); see generally *Developments in the Law, supra*, n. 7, at 1265-1266.

¹⁴ See Comment, *The Seventh Amendment and Civil Rights Statutes: History Adrift in a Maelstrom*, 68 Nw. U. L. Rev. 503, 524-527 (1973).